

**SUPERIOR COURT OF CALIFORNIA
COUNTY OF VENTURA**

Tentative Ruling

**2023CUCR009593: JOHN ROE 1 A MINOR BY AND THROUGH GUARDIAN AD
LITEM JANE ROE, et al. vs PLEASANT VALLEY SCHOOL DISTRICT, et al.**

08/25/2026 in Department 41

**Motion to Compel Jane Roe's Further Responses to Special Interrogatories and Request
for Sanctions**

GRANT both motions.

Further, sanctions are order in the amounts requested by Defendant. Defendant seeks \$5,250 in sanctions for the motion to compel further responses to the special interrogatories and \$4,550 for the motion to compel further responses to the request for production of documents.

Discovery at issue was served on Plaintiff on June 4, 2025. A meet and confer was attempted, before the motions were filed. On November 18, 2025, Plaintiff's counsel served supplemental medical records for John Roes 1 and 2 but failed to provide any responses to the outstanding discovery. These motions were filed on December 4, 2025. Opposition and reply have been filed.

Defendant argues that although the interrogatories were served in June 2025 and an extension was granted, Plaintiff failed to provide any timely responses, thereby waiving all objections. When Plaintiff eventually served responses in late December 2025, more than five months overdue, those responses were substantively deficient, consisting largely of boilerplate objections, nonresponsive narrative answers, improper references to other materials, and refusals to provide information. Despite multiple meet-and-confer efforts and a detailed deficiency letter, Plaintiff has not cured these issues.

Defendant further argues that the deficient discovery responses have prejudiced its ability to prepare the case, particularly by disrupting the scheduling and preparation of key depositions, which had to be canceled and rescheduled due to the lack of meaningful written discovery. With trial approaching, Defendant asserts that complete interrogatory responses are necessary to conduct effective depositions and avoid further delays. Finally, Defendant seeks approximately \$5,250 in monetary sanctions, arguing that Plaintiff's failure to provide timely and adequate discovery responses constitutes a misuse of the discovery process and necessitated the filing of the motion.

As to the document demands, Defendant argues that it properly served the document demands on June 4, 2025. Plaintiff was granted an extension to July 24, 2025. Defendants argue that it engaged in multiple meet-and-confer efforts, yet Plaintiff has failed to serve any responses whatsoever as of the filing of the motion. Defendant contends that this complete failure to respond constitutes a violation of the discovery statutes, results in a waiver of all objections under Code of Civil Procedure section 2031.300 and entitles Defendant to an order compelling full responses without objections.

Defendant further asserts that Plaintiff's noncompliance has persisted for over six months despite repeated notice and opportunities to cure, forcing Defendant to incur unnecessary costs to bring

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the motion. Based on this conduct, Defendant seeks monetary sanctions of approximately \$2,700 against Plaintiff and/or her counsel, arguing that the failure to respond to discovery and to meaningfully meet and confer constitutes misuse of the discovery process. The motion ultimately requests that the Court compel full, verified responses within a specified time, deem all objections waived, and award sanctions.

Plaintiff argues that the motion to compel should be denied because Defendant's discovery is procedurally defective, excessively burdensome, duplicative, and unnecessary, and because Plaintiff has acted in good faith in providing responses. Plaintiff next argues that Defendant propounded an extraordinary 196 special interrogatories on Jane Roe resulting in improper duplication, harassment, and an intent to oppress. Plaintiff argues that, as guardian ad litem, Jane Roe already provided substantially the same information through responses on behalf of her children, rendering the additional interrogatories redundant and disproportionate to the needs of the case. Plaintiff also argues that the volume of discovery, combined with an 8,500 plus page document production and the small size and staffing challenges of Plaintiff's counsel's firm, makes responding unduly burdensome.

Moreover, Plaintiff argues the motion is procedurally defective and should be denied because the separate statement fails to comply with California Rules of Court by improperly grouping interrogatories rather than addressing each individually, making the motion defective on its face. Substantively, Plaintiff argues that she provided verified responses and later supplemental responses that adequately address the interrogatories, reflecting a good faith effort to comply despite delays caused by staffing issues and counsel's medical problems. Plaintiff further argues that the interrogatories are oppressive under California law because their cumulative burden far outweighs any marginal benefit, particularly where Defendant already possesses the same information. Finally, Plaintiff argues that sanctions are unwarranted because any deficiencies were substantially justified, cured through supplemental responses, and caused little to no prejudice to Defendant.

Plaintiff argues that the motion to compel further responses to the Requests for Production should be denied because the discovery is duplicative, burdensome, and the result of excusable attorney error rather than any willful noncompliance. Plaintiff argues that Defendant propounded 63 document requests on Jane Roe that largely mirror requests previously served on, and already answered by, the minor plaintiffs, making the discovery cumulative and oppressive. Plaintiff also argues that delays in responding were caused by significant staffing shortages, turnover, and serious medical issues affecting lead counsel, as well as reliance on a junior associate who failed to complete the responses before resigning. Once the issue was discovered, Plaintiff promptly involved Jane Roe and ultimately served verified responses on December 31, 2025, along with supplemental production, thereafter, demonstrating a good faith effort to comply.

Substantively, Plaintiff argues that any waiver of objections should be excused under Code of Civil Procedure section 2031.300 because the delay resulted from mistake, inadvertence, or excusable neglect, and because Plaintiff has since provided substantially compliant responses. Plaintiff further argues that the requests are unduly burdensome and harassing given their repetitive nature and the fact that Defendant already possesses the same information through prior discovery, making additional responses disproportionate to the needs of the case. Plaintiff

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also argues that her responses are adequate and made in good faith, and that Defendant has suffered little prejudice. Finally, Plaintiff argues that sanctions are unwarranted because the circumstances show substantial justification for any delay and a demonstrated effort to cure deficiencies, and therefore requests that the motion be denied in its entirety.

In Reply, Defendant argues that the motion to compel should be granted because Plaintiff has never provided code-compliant responses to most of the special interrogatories and instead relies on boilerplate objections, incomplete answers, and improper evasions. Defendant next argues that the opposition avoids the merits by focusing on formatting criticisms, unsupported burden claims, and alleged duplication, none of which excuse Plaintiff's failure to provide substantive factual responses. It argues that the separate statement is fully compliant, that Jane Roe, who asserts independent claims, must respond personally regardless of any overlap with the minors' discovery, and that even under Plaintiff's own math, the bulk of interrogatories remain unanswered.

Defendant further argues that all objections are waived due to untimely responses and the absence of any motion for protective order, and that Plaintiff's burden arguments fail because they are unsupported by evidence. It argues that supplemental responses served after the motion was filed only addressed a small subset of interrogatories and confirm systemic noncompliance, including failure to identify witnesses or documents, providing supporting facts for key claims (e.g., damages, Title IX violations, retaliation), giving complete and consistent answers. Defendant provides extensive examples of deficiencies, including evasive "see documents" responses, blanket references to entire productions, contradictions, and incomplete or blank answers, all of which it argues violate the discovery statutes.

Finally, Defendant argues that Plaintiff's conduct constitutes misuse of the discovery process warranting sanctions, as Plaintiff delayed, served nonresponsive answers, and only partially supplemented after the motion.

As to the Request for Production, Defendant argues that the opposition effectively concedes the key issues and that the motion to compel should be granted because Plaintiff's responses were untimely, no motion for relief from waiver was filed, and the subsequent "supplemental" production is minimal and noncompliant. Defendant contends that under Code of Civil Procedure section 2031.300, Plaintiff's failure to timely respond results in an automatic waiver of all objections and that Plaintiff cannot avoid this consequence by characterizing the waiver as a "gotcha" or by producing limited documents after the fact. Defendant argues that the February 23 production (approximately 30 pages for Jane Roe and some records for a minor plaintiff) does not constitute substantial compliance because it fails to meaningfully respond to most requests, does not identify documents by request, and omits key categories such as insurance, income loss, communications, statements, and recordings.

Defendant further argues that Plaintiff cannot rely on prior productions by the minor plaintiffs, both because those responses were themselves deficient and disputed, and because Jane Roe has independent obligations as a separate plaintiff asserting her own claims. Defendant also argues that Plaintiff's excuses based on staffing issues and illness are legally irrelevant, noting that the proper remedies, extensions, protective orders, or a motion for relief, were never pursued. It also

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argues that Plaintiff's burden objections fail for lack of evidentiary support, as no declaration or specific showing of burden was provided. Finally, Defendant identifies numerous outstanding deficiencies in specific requests, asserts that Plaintiff's conduct constitutes misuse of the discovery process warranting sanctions, and requests an order compelling full, verified, objection-free responses and production, or alternatively expedited relief if the Court deems the motion technically moot.

"Unless otherwise limited by order of the court in accordance with this title, any party may obtain discovery regarding any matter, not privileged, that is relevant to the subject matter involved in the pending action or to the determination of any motion made in that action, if the matter either is itself admissible in evidence or appears reasonably calculated to lead to the discovery of admissible evidence." (Code Civ. Proc., § 2017.010.) For discovery purposes, information should be regarded as relevant "if it might reasonably assist a party in evaluating the case, preparing for trial, or facilitating settlement thereof." (City of Los Angeles v. Superior Court (2017) 9 Cal.App.5th 272, 288.)

"California's pretrial discovery procedures are designed to minimize the opportunities for fabrication and forgetfulness, and to eliminate the need for guesswork about the other side's evidence, with all doubts about discoverability resolved in favor of disclosure." (Glenfed Development Corp. v. Superior Court (1997) 53 Cal.App.4th 1113, 1119.)

Code of Civil Procedure sections 2030.300 provide for a party to bring a motion to compel further responses to interrogatories where the responding party provides inadequate, incomplete, or evasive responses, or the objections are too general or without merit. The propounding party must submit a declaration under Code of Civil Procedure section 2016.040 stating facts demonstrating a good faith and reasonable effort to informally resolve all issues raised by the motion. (Code Civ. Proc., §§ 2030.300, subd. (b)(1).) The motions must be brought within 45 days of service of the responses or supplemental responses. (Code Civ. Proc., §§ 2030.300, subd. (c).)

"The propounding party must demonstrate that the responses were incomplete, inadequate or evasive, or that the responding party asserted objections that are either without merit or too general." (Sinaiko Healthcare Consulting, Inc. v. Pacific Healthcare Consultants (2007) 148 Cal.App.4th 390, 403.)

Regarding a motion to compel further responses to requests for production, "[t]he production and inspection procedures contemplated by Code of Civil Procedure section 2031 may be judicially enforced only upon a showing of good cause. The party required to show good cause 'shall show specific facts justifying discovery and that the matter is relevant to the subject matter of the action or reasonably calculated to lead to the discovery of admissible evidence. But the moving party need only show, in addition to relevance (broadly construed), that his reasons for seeking discovery are within the declared purposes of the Discovery Act (that is, discovery will aid his case) and that discovery may be allowed without doing violence to equity, justice, or the inherent rights of the adversary. The court's determination necessarily depends on the facts and issues of the particular case." (Volkswagenwerk Aktiengesellschaft v. Sup. Ct. (1981) 123 Cal.App.3d 840, 850; Code Civ. Proc., § 2031.310, subd. (b)(1).)

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Plaintiff argues that the Defendant's separate statement is procedurally defect because it groups requests. No separate statement is required if the Court allows the moving party to submit an alternative concise summary of the request and response in lieu of a separate statement. Thus, it is in the Court's discretion as to whether the separate statement is defective. Given the nature of the dispute, it is recommended that the Court find that the separate statement is adequate.

There is no dispute that Plaintiff did not serve timely responses and thus waived objections. Plaintiff's responses rely almost entirely on objections. Plaintiff has not moved for relief from waiver of objections. Under these circumstances, the Court may find that Plaintiff's responses are deficient. Plaintiff's excuses are concerning and appear to be an admission that it lacks the resources to properly prosecute this case. Nevertheless, the excuses are not grounds to relieve the waiver particularly without a properly noticed motion. It is recommended that the Court grant the motion and order Plaintiff to serve code compliant objection free supplemental responses.

Evaluating the motion purely on the undisputed facts that (1) Defendant properly served the request for production; (2) Plaintiff failed to serve timely response; (3) Plaintiff has not moved for relief from waiver of objections (a request in the opposition is not a proper motion for relief); and (4) Plaintiff has not demonstrated that he subsequently served substantial responses, the motion should be granted.

Plaintiff's counsel's excuses for failure to timely respond are deeply concerning and potential a State Bar issue because of the potential obligation not to take on work that cannot be complete due to lack of expertise or resources. Plaintiff's counsel appears to admit that their firm does not have the resources to prosecute this case. Also concerning is the fact that Plaintiff's counsel responded to the motion to compel responses as if it were a motion to compel further responses.